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Re: Party:195438787 Claim:CLM-317073

From Cory Shepherd <coryshepherd1@hotmail.com>

Date Tue 29/10/2024 2:40 PM

To Louise Ings <Louise.Ings@art.com.au>

 3 attachments (2 MB)

Outlook 1 psychiatrist .pdf; Cory S.pdf; Image.jpeg;

Good afternoon,

Thanks for getting back to me.

I have called payroll and attached the payslip you have requested.

Additionally, I both operated as a Business but predominantly a Sole trader.

ABN 17 664 716 142

I have ceased operating on my ABN Since moving to a full-time employment with Queensland Health and experiencing the workplace issues.

Between 27/06/2023 and 26/06/2024 I have not generated any income from it.

I apologise I must have not understood the time frame specifically. I don't mean to rush things but I have attached correspondence from my property manager and have many other overdue notices such as my utilities phone Internet bills and so forth.

So, I can relay my current situation and possible outcomes to the people I owe money to can I know what the time frame is in terms of a date? I understood and recall you mentioning something about the timeframes and that I would fall in one of two categories of the time frames regarding my assessment.

Thank you for your time and sorry for the inconvenience or pressure.

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From: Louise Ings <Louise.Ings@art.com.au>

Sent: Tuesday, October 29, 2024 12:32 pm

To: Cory Shepherd <coryshepherd1@hotmail.com>

Subject: RE: Party:195438787 Claim:CLM-317073

Hi Cory,

As I have previously advised, your pending claim is still being reviewed and I would update you early this week. There are several internal and external time frames for a pending assessment to be completed in otherwise a breach will occur. I am within internal and external time frames.

I have assessed the date you ceased work due to your claim condition as 27/06/24. This assessment took time as there were multiple factors to consider within this assessment including leave history, medical information, and policy terms.

I have requested a missing payslip from Queensland Health from 24/06/24 – 07/07/24. If you have access to this payslip, please send it through.

Can you please confirm if you have an active ABN. A search of your name has brought a possible match to an active ABN since January 2023. As you hold unitised cover, if you have earned an income from 27/06/23 - 26/06/24 I will need to include these earnings in your pre-disability income calculations. Please provide any relevant tax returns, invoices, profit and loss statements etc for this assessment.

If you do have an active ABN and generating income from the ABN, can you also please provide a description of your role and duties. Can you also confirm when you ceased working with the ABN or if you are still contributing to the ABN business. Also explain the set up of the business, for example, sole trader, partnership etc.

Many thanks and kind regards,

Louise Ings
Claims Manager
225 George Street
Sydney, NSW, 2000
P 1300 360 750 | F 07 3239 1139
Direct P 07 3156 6764 | W qsuper.qld.gov.au



We acknowledge the Traditional Custodians of the lands where we live and work, and their connections to land, sea and community.

From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Tuesday, 29 October 2024 9:06 AM
To: Louise Ings <Louise.Ings@art.com.au>
Subject: Re: Party:195438787 Claim:CLM-317073

Hi Louise,

I was counting on the processing to be completed last week, as I'm currently 5 weeks behind on my rent.

Could you please provide an update today and, if possible, proceed with the claim?

Please let me know if I can help with any further information.

Thank you.

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From: Louise Ings <Louise.Ings@art.com.au>
Sent: Friday, October 25, 2024 7:59 am
To: Cory Shepherd <coryshepherd1@hotmail.com>
Subject: RE: Party:195438787 Claim:CLM-317073

Hi Cory,

Thank you for sending through the certificate. Great to hear you had your initial appointment with the psychiatrist.

I am continuing to review your pending claim. I do understand it is a stressful time. I do have service level agreements and am within timeframes to make a claim decision. I am on leave today and will continue to assess your claim when I return on Monday. I will update you early next week.

Many thanks and kind regards,

Louise Ings
Claims Manager
225 George Street
Sydney, NSW, 2000
P 1300 360 750 | F 07 3239 1139
Direct P 07 3156 6764 | W qsuper.qld.gov.au



We acknowledge the Traditional Custodians of the lands where we live and work, and their connections to land, sea and community.

From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Thursday, 24 October 2024 5:12 PM
To: Louise Ings <Louise.Ings@art.com.au>
Subject: Re: Party:195438787 Claim:CLM-317073

Hi Louise,

I have finally been able to see a psychiatrist today.

I have attached a medical certificate from them if you need it.

I also would like an update on the qsuper income protection if that is possible. I am experiencing a lot of financial distress.

Additionally, I am unable to make other applications with Q super for financial distress.

I am only able to make an application under the financial condition of receiving months of Centrelink payments which I have not.

Kind regards,

Cory

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From: Louise Ings <Louise.Ings@art.com.au>
Sent: Friday, October 18, 2024 3:34 pm
To: Cory Shepherd <coryshepherd1@hotmail.com>
Subject: RE: Party:195438787 Claim:CLM-317073

Hi Cory,

Member services number is 1300 360 750.

Please give them a call to discuss if any financial assistance can be provided while the review of your pending Income Protection claim is occurring.

Many thanks and kind regards,

Louise Ings
Claims Manager
225 George Street
Sydney, NSW, 2000
P 1300 360 750 | F 07 3239 1139
Direct P 07 3156 6764 | W qsuper.qld.gov.au



We acknowledge the Traditional Custodians of the lands where we live and work, and their connections to land, sea and community.

From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Tuesday, 15 October 2024 6:08 PM
To: Louise Ings <Louise.Ings@art.com.au>
Subject: Re: Party:195438787 Claim:CLM-317073

Hi Louise,

Thank you for the call today.

I have attached medical certificates from the emergency visit at Gold Coast University hospital, and further medical appointments prior to the maxiofacial surgery that was performed at a later date.

I also attach communication of additional medical appointments associated and communication with the on-call manager regarding my grandfather's funeral.

The bereavement leave doesn't seem to match the dates for the funeral so the dates the leave is incorrect.

The dates of the funeral and the communication that has been given seem to contradict the leave the manager processes at the time associated with bereavement leave.

I do not have authority to action leave and process payments but the dates in the messages and photos attached are the dates of my grandfather's funeral.

Additionally, I think the dates you Mentioned will be regarding my sister or Covid leave which was declined but later processed when I pointed out to the manager the date and time the attachment was uploaded.

I will log into the computer and send through the employment details for you shortly.

Thank you,

Cory
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From: Louise Ings <Louise.Ings@art.com.au>
Sent: Monday, October 14, 2024 3:41 pm
To: Cory Shepherd <coryshepherd1@hotmail.com>
Subject: RE: Party:195438787 Claim:CLM-317073

Hi Cory,

Apologies, I am unable to give you a call today. I will give you a call between 9am-11am tomorrow. Can you please send through the requested medical certificates?

Many thanks and kind regards,

Louise Ings
Claims Manager
225 George Street
Sydney, NSW, 2000
P 1300 360 750 | F 07 3239 1139
Direct P 07 3156 6764 | W qsuper.qld.gov.au



We acknowledge the Traditional Custodians of the lands where we live and work, and their connections to land, sea and community.

From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Monday, October 14, 2024 10:14 AM
To: Louise Ings <Louise.Ings@art.com.au>
Subject: Re: Party:195438787 Claim:CLM-317073

Hi Louise,

Can you please call me today.

Thank you,

Kind regards,

Cory

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From: Louise Ings <Louise.Ings@art.com.au>
Sent: Friday, October 4, 2024 4:05:15 PM
To: Cory Shepherd <coryshepherd1@hotmail.com>
Subject: RE: Party:195438787 Claim:CLM-317073

Hi Cory,

Apologies I am not available today. I have done a brief review of what has currently been received for your pending claim. There are medical certificates on file though unfortunately they are not clear. I am unsure if there is a current medical certificate active. Can you please re-send all the medical certificates so that they are legible?

From your employer information received, it appears leave without pay ceased 28/09/24. If the pending claim is approved, either sick leave without pay or leave without pay needs to be confirmed prior to any benefit being paid.

Please let me know if either Wednesday or Thursday are suitable for the initial call.

Many thanks.

Kind regards,

Louise Ings
Claims Manager
225 George Street
Sydney, NSW, 2000
P 1300 360 750 | F 07 3239 1139
Direct P 07 3156 6764 | W qsuper.qld.gov.au



We acknowledge the Traditional Custodians of the lands where we live and work, and their connections to land, sea and community.

From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Friday, October 4, 2024 11:58 AM
To: Louise Ings <Louise.Ings@art.com.au>
Subject: Re: Party:195438787 Claim:CLM-317073

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Hi Louise,

Are you available today by any chance?

Regards,

Cory

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From: Louise Ings <Louise.Ings@art.com.au>
Sent: Friday, October 4, 2024 10:44:31 AM
To: coryshepherd1@hotmail.com <coryshepherd1@hotmail.com>
Subject: Party:195438787 Claim:CLM-317073

Good morning Cory,

I am your Claims Manager for your pending Income Protection Claim.
I would like to introduce myself properly and discuss your claim condition in further detail. I would also like to explain your insurance policy and what to expect during the pending process.

Please let me know if either Wednesday 9th October between 11am-1pm or Thursday 10th October between 2pm-4pm is suitable for me to call you. I prefer to provide a window of time in case of any unforeseen urgent matters that can arise. The initial call generally takes 30-45 minutes in total. If neither day or window of time are suitable, please let me know a preferred day and window of time and I will try to re-arrange and accommodate.

Many thanks.
Kind regards,

Louise Ings
Claims Manager
225 George Street
Sydney, NSW, 2000
P 1300 360 750 | F 07 3239 1139
Direct P 07 3156 6764 | W qsuper.qld.gov.au



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Re: Party:195438787 Claim:CLM-317073

From Cory Shepherd <coryshepherd1@hotmail.com>

Date Fri 13/03/2026 10:00 AM

To Louise Ings <Louise.Ings@art.com.au>

Hey Louise,

I am just following up on an earlier email mid last year,

I have returned to work and against medical advice. I have not known if I would continue but have been doing approximately 50 - 60% of my hours over the year.

I am unsure how the super works but my Workcover claim still pending. I basically returned due to not wanting to loose my job. Most days are a struggle.

I believe I am near the end of the appeal process and would like the super to stop paying me and know how the Workcover if accepted would pay back into the super.

I would also like to update my phone number 0417 400 227

Kind regards

Cory

From: Louise Ings <Louise.Ings@art.com.au>

Sent: Monday, 16 December 2024 3:40 PM

To: Cory Shepherd <coryshepherd1@hotmail.com>

Subject: RE: Party:195438787 Claim:CLM-317073

Hi Cory,

Thank you for the update and sending through the updated medical information.

Can you please let me know if you are continuing to see your psychiatrist, Dr Ravikumar Bangalore Krishnaiah, and approximately how many sessions you have had so far?

Please let me know when you are able to see the psychologist your GP referred you to, Ms Helen Morris.

The GP who completed the referral is different to the GP who completed the Part C medical form, can you please advise which GP is your primary GP?

I will be sending a medical report request in the coming weeks to either your psychiatrist or your GP to assist the ongoing management of your Income Protection claim.

Many thanks and kind regards,

Louise Ings

Claims Manager

225 George Street

Sydney, NSW, 2000

P 1300 360 750 | **F** 07 3239 1139

Direct P 07 3156 6764 | **W** qsuper.qld.gov.au



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From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Friday, 13 December 2024 6:40 PM
To: Louise Ings <Louise.Ings@art.com.au>
Subject: Re: Party:195438787 Claim:CLM-317073

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Hi Louise,

I have filed form 12 request for reinstatement, following this my family help me with a lawyer so currently in the process of a counteroffer in the reinstatement Queensland health have sent the deed and terms of reinstatement in a negotiation so we avoid the hearing I can forward the email itself just not the attachment.

I have filled form 9 appeal of the industrial relations independent decision to not change the decision to decline workcover. The lawyer will likely need to file for representation now that I have one. The vice president of industrial relations the responder will have legal representation I feel that if they made the right decision this would not be necessary.

My mental health not great. I have had my appointment forgot to get a medical certificate on medication, but my behaviour has changed. I am currently at the doctors seeking a new mental health plan.

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From: Louise Ings <Louise.Ings@art.com.au>
Sent: Friday, December 6, 2024 6:07:43 PM
To: coryshepherd1@hotmail.com <coryshepherd1@hotmail.com>
Subject: Party:195438787 Claim:CLM-317073

Hi Cory,

How have you been going this last month?

I understand you had a psychologist review late November, can you please provide an update on how the appointment went and the frequency of your sessions currently.

Please let me know how often you are currently seeing your GP and if there are any other medical providers within your treating team.

Please let me know if there are any updates regarding the employer situation and possible legal action.

If you would prefer to discuss over the phone, please either give me a call or advise a suitable day and window of time for me to call you.

Many thanks and kind regards,

Louise Ings

Claims Manager
225 George Street
Sydney, NSW, 2000
P 1300 360 750 | F 07 3239 1139
Direct P 07 3156 6764 | W qsuper.qld.gov.au



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Re: Party:195438787 Claim:CLM-317073

From Cory Shepherd <coryshepherd1@hotmail.com>

Date Mon 13/04/2026 8:48 AM

To Jennifer Chen <Jennifer.Chen@art.com.au>

Cc Louise Ings <louise.ings@art.com.au>

Dear Jennifer and Louise,

Thank you for your correspondence.

I apologise for the delay in responding. I have been managing diagnosed Major Depressive Disorder with anxious distress, which has significantly affected my capacity to manage correspondence and competing demands on multiple threads causing me to shut down. During this time, I have also been self-representing in multiple legal proceedings without legal assistance. I am responding now because I wish to resolve this matter.

There are two issues I need to address in this email.

The first concerns the apparent overpayment of my Income Protection benefit.

The second is a formal complaint regarding the handling, use and disclosure of my medical information.

Apparent overpayment of Income Protection benefit

My concern is not merely that an overpayment may have occurred. Rather, it is that my benefit does not appear to have been reviewed, adjusted or reconciled in a timely manner after I returned to work at reduced capacity, despite ongoing employer contributions continuing to be remitted to QSuper during that period.

During the period of my Income Protection claim, I was dismissed from Queensland Health. I pursued an unfair dismissal matter, which resolved by consent, resulting in my reinstatement with a partial payment for less than half of the period I had been stood down. I returned to work against medical advice because, having already lost my job once, I felt I had no practical alternative if I wished to retain it. That was not recovery. It was survival. Since returning, I have only been able to work at approximately 60% of my full-time capacity.

I acknowledge that my benefit entitlement required, or may have required, adjustment once I resumed work in that reduced capacity. I also confirm that I have not received any WorkCover benefits. My WorkCover claim was rejected, and my appeal remains pending before the Queensland Industrial Relations Commission.

What concerns me is that active employer contributions continued throughout this period. At a minimum, this information should have prompted a timely review of my classification and benefit rate. Had such a review occurred earlier, any apparent overpayment may have been identified and limited at a much earlier stage.

In these circumstances, it is not reasonable for the entire burden of identifying and quantifying any overpayment to now be placed on me, particularly by requiring me to compile 12 months of payslips before QSuper has first utilised the contribution, account and employer information already available to it.

Accordingly, I ask QSuper to:

1. use the contribution, account and employer-related information already in its possession to calculate the apparent overpayment in the first instance;
2. provide a written breakdown of that calculation, including the relevant period, the rate applied, and the basis on which QSuper says my entitlement should have changed;
3. confirm whether my benefit should now be adjusted to reflect my partial work capacity, or whether it should cease;
4. consider a recovery approach that takes into account the delay in identifying the issue, my current circumstances, and the fact that I returned to work under pressure and at reduced capacity rather than because I had recovered; and
5. confirm whether any further documents are genuinely required after QSuper has reviewed the information already in its possession.

Formal complaint – handling and disclosure of medical information

The difficulty I have experienced in responding to requests for further medical material is not abstract. I later became aware that personal disclosure I made to my psychiatrist which was later information prepared by my treating psychiatrist for the purposes of my Income Protection claim—containing highly sensitive and deeply personal information—had been shared without my knowledge across various parties and used in a legal context for which it was not provided. I did not consent to that use or disclosure. This disclosure was then handed to the PID subjects of a substantive public interest disclosure.

That material later circulated back to me in circumstances I say were contrary to the applicable WorkCover legislative framework and has since been sealed by the Commission. This experience has had a serious impact on me and is the reason I am not prepared to provide further medical information without clear, written limits on its use, disclosure and handling.

Accordingly, I require QSuper and/or ART Life Insurance to confirm in writing:

1. what medical information from my claim file has been disclosed;
2. when that information was disclosed;
3. to whom it was disclosed;
4. the purpose for which it was disclosed;
5. the legal or other basis on which that disclosure is said to have been authorised;
6. what entities have had access to my claim file and medical information more generally; and
7. what safeguards will apply to any further medical information I provide.

Before I provide any further medical material, I also require written confirmation that any additional medical information will not be disclosed to any party involved in my legal proceedings without my prior written consent, unless QSuper and/or ART contends that such disclosure is required or authorised by law. In that event, I require the legal basis for that position to be identified in writing.

If a current medical certificate is required to confirm my present work capacity, I expect to be able to provide one following my upcoming psychiatrist appointment. However, given what

has already occurred, I ask that the written confirmation and clarification requested above be provided first.

I am not refusing to cooperate. I am asking that this matter be addressed reasonably, using information already available to QSuper, and that any further requests be confined to what is strictly necessary.

Kind regards,
Cory Shepherd
0417 400 227
coryshepherd1@hotmail.com

From: Jennifer Chen <Jennifer.Chen@art.com.au>
Sent: Thursday, April 9, 2026 3:48:07 pm
To: Cory Shepherd <coryshepherd1@hotmail.com>
Subject: RE: Party:195438787 Claim:CLM-317073

Hi Cory,

I hope you have been well.

I just wanted to follow up on Louise's email below to see if you were able to provide the information that we require to adjust your benefits.

Please feel free to reach out if you have any questions regarding this or please let me know if you would like to have a chat over the phone and we can schedule in a time.

Kind Regards,

Jennifer Chen
Senior Claims Manager
ART Life Insurance

225 George St
Sydney, NSW, 2000
P 1300 360 750 | F (07) 3239 1139
Direct (07) 3156 6761 | W qsuper.qld.gov.au



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-----Original Message-----

From: Louise Ings
Sent: Tuesday, 24 March 2026 5:16 PM
To: 'Cory Shepherd' <coryshepherd1@hotmail.com>
Subject: RE: Party:195438787 Claim:CLM-317073

Hi Cory,

Thank you for your email and providing an update.
Your Claims Manager, Jennifer is currently on leave.

Regarding requested financials, we need all payslips for income you have generated while receiving Income Protection benefits. You have been receiving a full benefit as we considered you to be Totally and Temporarily Disabled. As you have advised you received income and RTW against medical advice, this will likely change you to Partially and Temporarily Disabled, and the benefit previously received will need to be amended to consider your earning income. As Jennifer noted previously, this will likely result in an over payment which will need to be recouped.

Please send through all payslips you have received for review.

Can I also please request all medical documentation, including medical certificates, relating to when you RTW against medical advice (if applicable) and if you have decreased your working capacity or ceased working since you RTW.

Can you also please confirm that status of your WorkCover claim and if you have received or are currently receiving any benefit from WorkCover.

Many thanks and kind regards,

Louise Ings
Senior Claims Manager
225 George Street
Sydney, NSW, 2000
P 1300 360 750 | F 07 3239 1139
Direct P 07 3156 6764 | W qsuper.qld.gov.au

From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Saturday, 21 March 2026 11:30 AM
To: Jennifer Chen <Jennifer.Chen@art.com.au>
Cc: Louise Ings <Louise.Ings@art.com.au>
Subject: Re: Party:195438787 Claim:CLM-317073

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Hi Jennifer,

I am now in the process of gathering my payslips. Could you please let me know what would be most helpful for your assessment? I am unsure whether you would prefer all of them, or whether it would be enough for me to provide my most recent payslip together with my annual income details from before my claim. I believe this would be alot easier while still reflecting the exact amount and the difference of that works better

I thank you for your patience and understanding. I'm sorry for the delay in getting back to you, and also that I missed your call yesterday. Over the past 12 months, I have often not known from one day to the next what I was going to be dealing with. I have been trying to navigate my WorkCover appeal, the uncertainty around my employment with Queensland Health, and the impact these ongoing issues have had on my health and day-to-day life. It has been an incredibly difficult and unstable time, and at points I have felt overwhelmed and unable to keep up with everything, including correspondence eventually isolating myself.

During the workcover I was actually dismissed from my employment and then reinstated at Queensland Health, I returned to work against medical advice because I was deeply afraid of losing my job again. I tried to keep going and manage the hours, but I was not coping, and the level of overwhelm I was experiencing ultimately resulted in a car crash on the motorway.

As an update, I am scheduled to see my psychiatrist in three weeks. Since then, the pressure of my employment situation, the WorkCover matter, and the impact on my mental health have made it difficult to stay on top of everything. I estimate there has been approximately a 55% reduction in my pay. I am hopeful that once the hearing date is set and the WorkCover matter moves closer to resolution, things may begin to feel more manageable.

Thank you again for your understanding and support.

Kind regards,
Cory

I will call back first thing Monday morning

Get https://aus01.safelinks.protection.outlook.com/?url=https%3A%2F%2Faka.ms%2FAAb9ysg&data=05%7C02%7Cheka_claims_outbound_prod%40qsuper.qld.gov.au%7C554bfa664dc34ebac9e008de896cea0f%7Cb7f00dde24c74abfae16d1620d6017a8%7C0%7C0%7C639099298061423365%7CUnknown%7CTWFpbGZsb3d8eyJFbXB0eU1hcGkiOnRydWUsIlYiOiIlwLjAuMDAwMCIsIlAiOiJXaW4zMtIklFOljoIjIWFpbGlldUljoyfQ%3D%3D%7C0%7C%7C%7C&sdata=2gXeGGRB6oTmbkJchE8pXznDuyLBTpyw5S8K7nKcSsl%3D&reserved=0

From: Jennifer Chen
Sent: Friday, March 20, 2026 2:52:50 pm
To: coryshepherd1@hotmail.com
Cc: Louise Ings
Subject: Party:195438787 Claim:CLM-317073

Hi Cory,

I tried to give you a call this afternoon but I was unable to reach you, unfortunately.

I wanted to have a chat with you regarding your email below.

As you have returned to work, we will need to adjust your benefits according to the income you have earned since you have returned to work. Can you please let us know when you commenced your return to work and provide all your payslips to date so that we can calculate your benefits correctly and advise of any overpayments?

Can you please confirm whether you would like us to cease your Income Protection benefits from now?

I wanted to let you know that I will be on leave from 21/03/2026 - 06/04/2026. I have included Louise in this email who will be able to assist you with your claim while I am on leave.

Kind Regards,

Jennifer Chen

Senior Claims Manager

ART Life Insurance

225 George St

Sydney, NSW, 2000

P 1300 360 750 | F (07) 3239 1139

Direct (07) 3156 6761 | W qsuper.qld.gov.au

From: Cory Shepherd <mailto:coryshepherd1@hotmail.com>

Sent: Friday, 13 March 2026 10:01 AM

To: Louise Ings <mailto:Louise.Ings@art.com.au>

Subject: Re: Party:195438787 Claim:CLM-317073 Hey Louise, I am just following up on an earlier email mid last year, I have returned to work and against medical advice. I have not known if I would continue but have been doing approximately 50 - 60% of my hours over the year.

I am unsure how the super works but my Workcover claim still pending. I basically returned due to not wanting to loose my job. Most days are a struggle.

I believe I am near the end of the appeal process and would like the super to stop paying me and know how the Workcover if accepted would pay back into the super.

I would also like to update my phone number 0417 400 227 Kind regards Cory IMPORTANT INFORMATION:

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Re: QSuper - [cf15866300-446968946]

From Cory Shepherd <coryshepherd1@hotmail.com>
Date Mon 13/04/2026 3:21 PM
To qsuper@qsuper.qld.gov.au <qsuper@qsuper.qld.gov.au>

Dear Gavin,

Thank you for your email and for acknowledging my concerns.

I just want to say that I am not trying to turn everything into a complaint or a legal battle. I have been struggling to cope with multiple issues at once and can really only manage one thing at a time.

I raised the issue of my medical information because it caused me real harm, and I needed that harm to be understood. At the same time, I do not wish for this to turn into any further formal process if that can be avoided. Moving forward, In relation to the overpayment, there is no dispute from my side that it needs to be addressed. My hope is simply that it can be resolved fairly and practically, without adding further strain or pressure on me.

I would be grateful if that could be kept in mind during the review.

Thank you again for your understanding.

Kind regards,

Cory Shepherd

From: qsuper@qsuper.qld.gov.au <qsuper@qsuper.qld.gov.au>
Sent: Monday, April 13, 2026 1:00:39 pm
To: coryshepherd1@hotmail.com <coryshepherd1@hotmail.com>
Subject: QSuper - [cf15866300-446968946]

Dear Cory

Thank you for reaching out to share your concerns with us. We know this is important to you and are here to help.

We are committed to resolving your complaint as quickly as possible. Just so you know, we are required to provide a final response within 45 days, but rest assured we expect to get back to you much sooner.

We will be in touch if we need anything further. In the meantime, if you have any questions, please do not hesitate to contact us on 1300 360 750 or you can make a written enquiry by visiting the [Contact Us](#) page our website.

We appreciate your patience and we'll be in touch soon.

Yours sincerely

Gavin
Resolutions Specialist

QSuper

Phone 1300 360 750

Fax 1300 241 602

qsuper.qld.gov.au



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Re: Cory Shepherd_ECC further information (MSH-INJ-5795)

From Cory Shepherd <coryshepherd1@hotmail.com>

Date Mon 13/07/2026 4:39 PM

To LBH Injury Management <LBH_InjuryManagement@health.qld.gov.au>

Cc Notes - IPEC (notes@solv.com.au) <notes@solv.com.au>

Good afternoon Michelle,

Thank you for your email. Four matters in response.

1. QSuper. I must correct the position stated in your email. I no longer have an active open QSuper Income Protection claim; that claim is now closed. In any event, the supporting medical documentation could only support a partial payment at most: I am not totally incapacitated. I am certified fit for my existing arrangement. There is no income protection payment that could respond to the present situation, in which I am receiving no shifts at all.

My current loss of income arises from the Health Service's decision not to roster me — which your email itself confirms ("we are unable to support a return to work at this time") — and not from my capacity for work. There is accordingly no income support available to me from that source.

2. Pay. My request, made in each of my previous emails — that rostered shifts during this employer-directed period be treated as paid time and not deducted from my leave — has not yet been answered. Given the above, I ask again. If the Health Service's position is that these shifts will be unpaid or deducted from my leave, could you please confirm that in writing, together with the basis for it, so that I can consider my position.

3. Interim alternative duties. Separately, should the Health Service require further time to assess my return to the Switchboard, I note that I also bring prior skills and experience from within Metro South Health, including in the finance department and in scanning/records. I am ready and willing to perform suitable interim duties of that kind, within my certified capacity, as an alternative to remaining off work unpaid while the assessment is completed. This offer is made to my substantive Switchboard position and certified arrangement, to which I remain ready to return. I would welcome a discussion about how my experience can be used to the benefit of the Service in the interim.

4. Dr Ma. My consent for the Health Service to contact Dr Day Hong Ma for clarification, limited to my present work capacity and the recommended adjustments, stands. As I have now been held out of work since 3 July while certified fit, could you please send any questions to Dr Ma promptly, copy me for my records, and advise the timeframe within which my return will be decided once his response is received.

I remain certified fit, ready, and available to work my rostered shifts.

Kind regards,
Cory Shepherd

From: LBH Injury Management <LBH_InjuryManagement@health.qld.gov.au>
Sent: Monday, 13 July 2026 15:53:26
To: Cory Shepherd <coryshepherd1@hotmail.com>
Cc: Notes - IPEC (notes@solv.com.au) <notes@solv.com.au>
Subject: RE: Cory Shepherd_ECC further information (MSH-INJ-5795)

Good afternoon Cory,

Thank you for your email and for providing your response to the further information requested.

I acknowledge that you have advised you do not wish to provide further information regarding the WorkCover matter referenced in your Employee Capability Checklist (ECC) and that you have provided consent for the Health Service to contact your treating practitioner, Dr Day Hong Ma, for clarification regarding your current work capacity and the recommended workplace adjustments.

As mentioned below in the email sent to you from Ms Forrest on 7 July 2026, we are currently unable to safely support or accommodate a Graduated Return to Work Plan that meets your medical requirements. For us to consider your request to return to duties further we require further medical clarification.

Once this information has been received and appropriately reviewed, the Health Service will be in a position to assess whether a return to restricted duties can be facilitated, and we will advise you of the outcome as soon as practicable.

As you currently have an active open QSuper Income Protection claim, any payments that are applicable to you receiving, would be facilitated by them. You should contact your claim manager James Zappia at QSuper and inform them that we are unable to support a return to work at this time.

Should you have any questions in the meantime, please do not hesitate to contact me.

Kindest Regards

Michelle Harrison

Injury Management Consultant | LBHS HR Team 1

Human Resources

Logan and Beaudesert Hospital and Health Service

4/3-5 University Drive, Meadowbrook Qld 4131

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Please be advised that we are currently transitioning into Solv, a new Injury Management Case System. Our documents and communications may change appearance slightly and you may even receive communications from us via the @Solv.com.au email pathway, as this is a new email pathway, please ensure you are regularly checking your Junk folder in your email accounts and save the @solv to your frequent emails so you do not miss any communications. Please note these emails are legitimate and are from us here at lbh_injurymanagement@health.qld.gov.au. If you have any concerns, please reach out to us via the above contact details.

From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Friday, 10 July 2026 8:35 AM
To: Lyndelle Forrest <Lyndelle.Forrest@health.qld.gov.au>
Cc: LBH Injury Management <LBH_injurymanagement@health.qld.gov.au>
Subject: Re: Cory Shepherd_ECC further information

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Good morning Ms Forrest,

Thank you for your email of 7 July 2026, which I have only now had the opportunity to consider. Apologies for the delay in responding.

I am certified fit to return to work from 3 July 2026 and am ready and available to return. The ECC records the same reduced work arrangement I have performed for approximately the past twelve months. That arrangement is not new; it is now formally documented by my treating practitioner.

I note that the adjustments identified in the ECC appear to be accommodated by existing practice. Your email confirms that Switchboard operators are not expected to manage or resolve consumer complaints, and that current rostering provides more than 10-hour breaks between shifts and is published in advance. Together with my existing shift arrangement, this appears to address the recommendations in the ECC.

I ask that my return to rostered shifts be facilitated, with any remaining clinical clarification obtained in parallel.

Regarding the further information requested:

- **Workplace matters:** These matters are the subject of proceeding WC/2024/227 before the Queensland Industrial Relations Commission. The Health Service is legally represented through Metro South Legal Services, reference K-LM26/729. I will not provide further particulars through this return-to-work process. Any questions about those matters should be directed to Metro South Legal Services.
- **Clinical recommendations:** The recommendations are those of Dr Day Hong Ma. I am not able to interpret or expand on clinical recommendations. If clarification is

required, I consent to the Health Service contacting Dr Hong Ma directly, limited only to my present work capacity and the recommended adjustments.

- **Report dated 13 February 2025:** I do not consent to providing this report through this process. It contains sensitive information beyond what is necessary to implement the ECC recommendations. My present fitness for duty is addressed in the ECC and may be clarified by Dr Hong Ma if required.

If the Health Service decides not to roster me pending its assessment, please confirm that these shifts will be treated as paid time and will not be deducted from my leave, as I am certified fit and available to work.

I remain available to commence at my next rostered shift.

Kind regards,
Cory Shepherd

From: Lyndelle Forrest <Lyndelle.Forrest@health.qld.gov.au>
Sent: Tuesday, July 7, 2026 10:54:35 am
To: coryshepherd1@hotmail.com <coryshepherd1@hotmail.com>
Cc: LBH Injury Management <LBH_InjuryManagement@health.qld.gov.au>
Subject: Cory Shepherd_ECC further information

Good morning Cory

I refer to the Employee Capability Checklist (**ECC**), completed by Dr Day Hong Ma of My Doctor Clinic on 3 July 2026 and returned to the Injury Management Team at 2:30pm that day. It is further noted that due to a section of this document being missing, you were asked to resubmit your ECC for consideration, you sent this on Friday at 3:06pm.

While you have been certified fit to return to work effective from 3 July 2026, this certification is subject to reasonable adjustments being made to your duties and hours of work. As the completed ECC was received late on Friday, 3 July 2026, the Health Service was unable to review Dr Hong Ma's medical recommendations at that time to determine whether the recommended restrictions and adjustments could be reasonably accommodated and whether it was safe for you to return to duty.

I can advise that your ECC has now been reviewed and carefully considered. However, before a final decision can be made regarding your return to the workplace, further information is required. Specifically, it is noted that your treating medical practitioner has advised that there are unresolved workplace matters involving line management. At this stage, the Health Service does not have sufficient information to understand the nature of these matters or assess whether they present any psychosocial hazards or risks that may affect your proposed return to work.

The Health Service remains committed to supporting your safe and sustainable return to work, with your health, safety and wellbeing remaining central to that process. Accordingly, further information is required to enable the Health Service to assess any identified risks, determine whether reasonable adjustments can be supported, and ensure that any return to work is planned and managed in accordance with its obligations under work health and safety legislation.

To assist us in expediting consideration of your reasonable adjustments, please provide further clarification and/or reports referenced below, within seven (7) calendar days.

ECC Recommendation	Further information required
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<i>Diagnosis of Major Depressive Disorder with anxious distress, a work-related psychological injury with onset 18 June 2024, with symptoms exacerbated on exposure to identified workplace stressors (complaint handling; being held accountable and blamed for failures of others; unpredictable rostering.</i>	The Health Service is seeking to better understand the work-related psychological injury for which you are currently receiving treatment from a psychologist. It is also noted that Dr Day Hong Ma has referenced a report from your treating psychiatrist dated 13 February 2025. To date, the Health Service has not been provided with, nor had the opportunity to review, this report. To enable the Health Service to appropriately consider and address these matters, further information and/or a copy of this report is requested regarding the workplace issues referred to in the ECC and their impact on your capacity for work.
Complaint handling No complaint-handling duties, complaints received at the Switchboard to be logged and redirected, not actioned or resolved by Mr Shepherd.	The Health Service understand that the established process for management of complaints is for all patient concerns to be redirection to the Consumer Liaison Services (CLS). There is no expectation for Switchboard operators to manage or deal with these matters. Where a consumer raises concerns in relation to a Switchboard employee, these concerns are referred to the Manager, Switchboard or in her absence, CLS. To understand this concern better and adjustments required, please clarify what features of complaint handling are being referenced and you are expected to resolve within this recommendation.
Predictable Rostering practices, minimum 10-hour break between shifts	Rosters are generally published with four (4) weeks' notice, on four-week rotation. Occasionally, in extenuating circumstances these might be delayed. However, all rosters are released with a minimum of two weeks' notice. The Health Service is not aware of breaching this provision and has not received any Workload Concerns to review, can you please clarify the concerns relating to not providing the minimum break between rostered shifts? Noting that rostering currently provides more than 10-hour breaks between shifts, however, acknowledge you also signed an 8 hour agreement on 17 June 2020, which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have occurred. Please clarify the specific stressors which may exacerbate symptoms.
Being held accountable and blamed for failures of others	It is unclear what matters you are being held accountable and blamed for based on the

failures of others or what these concerns relate to. To-date the Health Service is not aware of any concerns being raised for appropriate management. Further clarity on this would assist in understanding this matter.

Until this information is available and has been appropriately assessed, the Health Service is not in a position to safely facilitate your return to normal duties.

Should you have any further questions or concerns, please do not hesitate to contact me via the details below.

Kind regards

Lyndelle Forrest

Senior Consultant

Human Resources

Logan and Beaudesert Health Service

[Metro South Health](#) | 

e. Lyndelle.Forrest@health.qld.gov.au | [Chat on Teams](#)

p. 07 3542 2028

a. Mon - Fri 7:30am - 4:00pm



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Re: INFORMATION UPDATE | QSuper Income Protection Claim: Cory Shepherd (MSH-INJ-5795) [CLM-317073]

From Cory Shepherd <coryshepherd1@hotmail.com>

Date Mon 13/07/2026 4:56 PM

To LBH Injury Management <LBH_InjuryManagement@health.qld.gov.au>; James Zappia <james.zappia@art.com.au>

Cc notes@solv.com.au <notes@solv.com.au>

Good afternoon Michelle,

I acknowledge receipt of your correspondence to Mr Zappia at QSuper. Four matters in response.

1. Disclosure to QSuper. For my records, could you please confirm what documents and information have been provided to QSuper/ART in relation to me, on what dates, and the authority relied upon for providing my health information to the fund – noting my advice that the income protection claim is closed. Could you also confirm the substance of what was discussed with Mr Zappia by telephone. I will be corresponding with Mr Zappia directly regarding the fund's position.

2. The request to Dr Ma. I note the Request for Medical Information will be forwarded "over the coming days." As I have now been held out of work since 3 July while certified fit, I ask that it be sent within three (3) business days, with a copy provided to me as previously requested, and that you advise the timeframe within which my return to work will be decided once Dr Ma's response is received.

I would also note that 28 August 2026 is Dr Ma's review date for the restrictions – it is not a start date for my capacity to work within them, which is certified now and has been since 3 July. A process paced to late August would leave me without work or income for some eight weeks while certified fit, which I trust is not the Service's intention.

3. Pay. My request – made in each of my previous emails – that rostered shifts during this employer-directed period be treated as paid time and not deducted from my leave remains unanswered. I renew it. If the Health Service's position is that these shifts will be unpaid or deducted from my leave, please confirm that in writing, together with the basis for it, so that I can consider my position.

4. Interim alternative duties. My offer to perform suitable interim duties within my certified capacity – drawing on my prior Metro South Health experience in the finance department and in scanning/records and to my substantive Switchboard position – also remains open and unanswered. I would welcome a response.

I remain certified fit, ready, and available to work my rostered shifts.

Kind regards,
Cory Shepherd

From: LBH Injury Management <LBH_InjuryManagement@health.qld.gov.au>
Sent: Monday, July 13, 2026 4:20:56 pm
To: James Zappia <james.zappia@art.com.au>
Cc: notes@solv.com.au <notes@solv.com.au>; Cory Shepherd <coryshepherd1@hotmail.com>
Subject: INFORMATION UPDATE | QSuper Income Protection Claim: Cory Shepherd (MSH-INJ-5795) [CLM-317073]

Good afternoon James,

Thank you for taking the time to speak with me this afternoon.

As discussed, based on the information currently available, we are unable to facilitate Cory's return to work in accordance with the restrictions outlined in the attached Employee Capabilities Checklist (ECC) completed by his treating practitioner.

To ensure we have sufficient information to make an informed decision, we will be seeking further medical clarification from Dr Day Hong Ma. This will assist us in better understanding the context of the recommended workplace adjustments and whether a restricted return to work can be safely and operationally supported. Once this information has been received, we will undertake a further review of Cory's capacity for work.

I note that Dr Day Hong Ma has nominated a review date of 28 August 2026. Over the coming days, we will forward a Request for Medical Information to Dr Day Hong Ma to obtain further clarification regarding the recommended restrictions, including the reduction in hours from Cory's substantive position, to assist us in determining whether a safe and sustainable return to work can be facilitated.

Please don't hesitate to contact me if you have any questions or require any further information.

Kindest Regards

Michelle Harrison

Injury Management Consultant | LBHS HR Team 1

Human Resources

Logan and Beaudesert Hospital and Health Service

4/3-5 University Drive, Meadowbrook Qld 4131

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e. lbh_injurymanagement@health.qld.gov.au | [Chat on Teams](#)

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regularly checking your Junk folder in your email accounts and save the @solv to your frequent emails so you do not miss any communications. Please note these emails are legitimate and are from us here at lbh_InjuryManagement@health.qld.gov.au. If you have any concerns, please reach out to us via the above contact details.

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